

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
EUGENIA SHVARTSMAN,

SUMMONS

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALEX KROYTOR, Shield No. 27111, NYPD POLICE
OFFICER ORKHAN MAMEDOV, Shield No. 1393, and
NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH SIX,

Plaintiff designates Kings
County as the place of trial

Defendants.
----- X

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 20, 2024

Yours, etc.

Rachel Black

Rachel Black, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER ORKHAN MAMEDOV, Shield No. 1393, 60th Precinct; 2951
West 8th Street, Brooklyn, New York 11224

NYPD POLICE OFFICER ALEX KROYTOR, Shield No. 27111, 60th Precinct; 2951
West 8th Street, Brooklyn, New York 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

EUGENIA SHVARTSMAN,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALEX KROYTOR, Shield No. 27111, NYPD POLICE
OFFICER ORKHAN MAMEDOV, Shield No. 1393, and
NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH SIX,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, EUGENIA SHVARTSMAN, by her attorneys, Shulman-Hill, PLLC, as and for
her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 21, 2023, at approximately 1:00 a.m., Plaintiff, while lawfully in the vicinity of 2929 West 31st Street, County of Kings, City and State of New York, was subject to an unlawful detention, arrest, assault, battery and excessive use of force by the defendant officers. In addition, Plaintiff was subjected to approximately twenty-four (24) hours in unlawful custody by the defendant officers at the NYPD 60th Precinct and Kings County Central Bookings before she was arraigned in criminal court, charged with crimes she did not commit, and released on her own recognizance. The charges falsely levied against Plaintiff by the defendant officers were dismissed and sealed on or about August 4, 2023. Plaintiff was deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and her constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force and inappropriate touching, maliciously prosecuted, and passed along false accusations to prosecuting attorneys against the Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, Eugenia Shvartsman, is a resident of the State of New York.
3. NYPD Police Officer Orkhan Mamedov, Shield No. 1393, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD Police Officer Orkhan Mamedov, Shield No. 1393, is being sued in his individual and official capacities.
5. At all times relevant herein, NYPD Police Officer Orkhan Mamedov, Shield No. 1393, was assigned to the 60th Precinct of the NYPD.
6. NYPD Police Officer Alex Kroytor, Shield No. 27111, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD Police Officer Alex Kroytor, Shield No. 27111, is being sued in his individual and official capacities.
8. At all times relevant herein, NYPD Police Officer Alex Kroytor, Shield No. 27111, was assigned to the 60th Precinct of the NYPD.
9. New York City Police Officers John and Jane Does Numbers One Through Six are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. New York City Police Officers John and Jane Does Numbers One Through Six are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On July 21, 2023, at approximately 1:00 a.m., Plaintiff was lawfully present in the vicinity of 2929 West 31st Street, County of Kings, City and State of New York, when the defendant officers unlawfully arrested her without probable cause or legal justification.

16. On the referenced day, Plaintiff had been visiting with her mother, when police arrived.

17. Based on obviously false allegations which were known or should have been known to the defendant officers at the time of their arrival, Plaintiff was told that she was under arrest.

18. Plaintiff, a medical student at the time, had never had any interactions with the criminal justice system prior.

19. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective basis to accuse Plaintiff of committing a crime or violating the law in any way.

20. At no point did the defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

21. Plaintiff did not resist arrest at any point.

22. Nevertheless, Plaintiff was unlawfully arrested and placed in unreasonably tight metal handcuffs by the defendant officers.

23. Lacking probable cause or legal justification, Plaintiff was placed in the back of an NYPD vehicle and transported to the 60th Precinct.

24. Before being transported, Plaintiff was physically violated by a male officer for the first time, with the officer placing his hand under her brassier strap, touching her arm.

25. Plaintiff attempted to move away from the male officer and disengage from his unwelcomed advances.

26. The defendant officers disengaged their body-worn cameras.

27. The officer, while touching her, asked whether Plaintiff was in possession of any drugs, which she obviously was not.

28. The male officer even went so far as to grope Plaintiff's buttocks.

29. Plaintiff continued to express her discomfort, and the officer continued his offensive campaign, asking Plaintiff whether she had a boyfriend.

30. At the 60th Precinct, Plaintiff was fingerprinted, photographed, and placed in a holding cell.

31. At the precinct Plaintiff was forced to use the restroom with the door open, with a male officer outside peering in as she adjusted her brassier strap.

32. After approximately several hours at the 60th Precinct, Plaintiff was transported to Kings County Central Bookings.

33. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiff had committed crimes; specifically, assault, harassment, and related charges.

34. On July 22, 2023, Plaintiff was arraigned in Kings County Criminal Court, charged with the crimes she did not commit, and was released on her own recognizance.

35. Upon her release Plaintiff visited Coney Island hospital, where she was examined and treated for migraines as the result of the incident, which triggered her symptoms of post-traumatic stress disorder.

36. On or about August 4, 2023, all charges against Plaintiff were dismissed and the records thereof sealed in their entirety.

37. Plaintiff suffered from humiliating and degrading embarrassment at the hands of the defendant officers.

38. Plaintiff was forced to endure constitutional violations beyond measure by the male officers' conduct which was sexually harassing and degrading in nature, and undoubtedly violative of her 4th and 14th Amendment rights.

39. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

40. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

42. Defendants owed a duty of care to Plaintiff.

43. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by, among other things, tightly handcuffing her and causing physical injury.

44. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

45. All of the foregoing occurred without any fault or provocation by Plaintiff.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION

Unlawful Stop, Question, and Search

49. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

50. The illegal approach, pursuit, stop, and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

51. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

55. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest/Imprisonment

58. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and the United States Constitution. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

64. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

65. The use of excessive force by defendants by, amongst other things, tightly handcuffing her causing injury, and inappropriately touching her including her breasts, arms, and buttocks, which constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

68. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

69. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

70. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

75. The City of New York and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, Plaintiff suffered serious, debilitating, and permanent emotional and psychological injury, her liberty was restricted for an extended period

of time, she was put in fear for her safety, and she was humiliated and subject to other physical constraints.

81. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

85. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, defendants violated Plaintiff's constitutional right to due process and a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, physical, and psychological injuries.

TENTH CAUSE OF ACTION **Malicious Prosecution**

94. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

95. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

96. Defendants commenced and continued criminal proceedings against Plaintiff.

97. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which she was prosecuted.

98. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION **Assault**

99. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

101. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

105. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

106. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner roughly handcuffed Plaintiff, inappropriately touched her including her breasts, arms and buttocks, and brutally effected an arrest without her consent and with the intention of causing harmful and/offensive bodily contact to the Plaintiff and caused such battery.

107. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

111. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

112. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

113. The acts of defendant officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

114. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately twenty-four (24) hours in total.

115. By reason of the acts and omissions by defendants described above, Plaintiff has endured psychological and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION
Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-802 Rights

116. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

117. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

118. Defendant officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

119. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

120. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

121. By reason of the acts and omissions by defendants described above, Plaintiff has endured psychological and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

122. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

123. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

124. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

125. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

126. The acts of defendant officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

127. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately twenty-four (24) hours in total.

128. By reason of the acts and omissions by defendants described above, Plaintiff has endured psychological and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

129. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

130. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

131. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

132. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

133. Defendant officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

134. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

135. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

136. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical, psychological, and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

137. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

138. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against her by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

139. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, psychological, economic, and emotional injuries, as well as a deprivation of liberty.

140. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, psychological, economic, and emotional injuries, as well as a deprivation of liberty.

141. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

142. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, EUGENIA SHVARTSMAN, demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
March 20, 2024

By: *Rachel Black*
Rachel Black, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NEW YORK CITY POLICE OFFICER ORKHAN MAMEDOV, Shield No. 1393, 60th Precinct; 2951 West 8th Street, Brooklyn, New York 11224

NYPD POLICE OFFICER ALEX KROYTOR, Shield No. 27111, 60th Precinct; 2951 West 8th Street, Brooklyn, New York 11224

ATTORNEY'S VERIFICATION

RACHEL BLACK, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
 March 20, 2024

Rachel Black

RACHEL BLACK